

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE BILL NO. 1351

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO STATE OFFICE VACANCIES AND DUTIES OF THE GOVERNOR; AMENDING SECTION 59-904, IDAHO CODE, TO PROVIDE FOR CERTAIN REJECTED GUBERNATORIAL APPOINTEES TO BE INELIGIBLE FOR REAPPOINTMENT TO THE SAME POSITION FOR ONE YEAR; AMENDING SECTION 67-802, IDAHO CODE, TO PROVIDE THAT THE GOVERNOR SHALL MAKE APPOINTMENTS AND FILL VACANCIES WITHIN A CERTAIN TIME AND TO MAKE TECHNICAL CORRECTIONS; AMENDING SECTION 67-303, IDAHO CODE, TO PROVIDE A CODE REFERENCE; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 59-904, Idaho Code, be, and the same is hereby amended to read as follows:

59-904. STATE OFFICES -- VACANCIES, HOW FILLED AND CONFIRMED. (a) All vacancies in any state office, and in the supreme and district courts, unless otherwise provided for by law, shall be filled by appointment by the governor. Appointments to fill vacancies pursuant to this section shall be made as provided in subsections (b), (c), (d), (e), (f) ~~and~~, (g), and (h) of this section, subject to the limitations prescribed in those subsections.

(b) Nominations and appointments to fill vacancies occurring in the office of lieutenant governor, state controller, state treasurer, superintendent of public instruction, attorney general and secretary of state shall be made by the governor, subject to the advice and consent of the senate, for the balance of the term of office to which the predecessor of the person appointed was elected.

(c) Nominations and appointments to and vacancies in the following listed offices shall be made or filled by the governor subject to the advice and consent of the senate for the terms prescribed by law, or in case such terms are not prescribed by law, then to serve at the pleasure of the governor:

Director of the department of administration,
Director of the department of finance,
Director of the department of insurance,
Director, department of agriculture,
Director of the department of water resources,
Director of the Idaho state police,
Director of the department of commerce,
Director of the department of labor,
Director of the department of environmental quality,
Director of the department of juvenile corrections,
Executive director of the commission of pardons and parole,
The state historic preservation officer,
The administrator of the division of human resources,

1 Member of the state tax commission,
 2 Members of the board of regents of the university of Idaho and the state
 3 board of education,
 4 Members of the Idaho water resource board,
 5 Members of the state fish and game commission,
 6 Members of the Idaho transportation board,
 7 Voting members of the state board of health and welfare,
 8 Members of the board of environmental quality,
 9 Members of the board of directors of state parks and recreation,
 10 Members of the board of correction,
 11 Members of the industrial commission,
 12 Members of the Idaho public utilities commission,
 13 Members of the Idaho personnel commission,
 14 Members of the board of directors of the Idaho state retirement system,
 15 Members of the board of directors of the state insurance fund,
 16 Members of the commission of pardons and parole.

17 (d) Appointments made by the state board of land commissioners to the
 18 office of director, department of lands, and appointments to fill vacancies
 19 occurring in those offices shall be submitted by the president of the state
 20 board of land commissioners to the senate for the advice and consent of the
 21 senate in accordance with the procedure prescribed in this section.

22 (e) Appointments made pursuant to this section while the senate is in
 23 session shall be submitted along with the letter of appointment to the sen-
 24 ate forthwith for the advice and consent of that body. Appointments made
 25 pursuant to this section while the senate is not in session shall be submit-
 26 ted along with the letter of appointment to the senate pursuant to section
 27 67-803, Idaho Code. Should the senate adjourn without granting its consent
 28 to an appointment the appointment shall thereupon become void and a vacancy
 29 in the office to which the appointment was made shall exist, and the office
 30 shall be deemed vacant upon the date of adjournment. It is the duty of the ap-
 31 pointing authority to supply the senate with the letter of appointment. The
 32 appointee shall supply the senate with the documentation it requests.

33 All appointments made pursuant to subsection (c) of this section, ex-
 34 cept those appointments for which a term of office is fixed by law, shall ter-
 35 minate at the expiration of any gubernatorial term. Appointments to fill the
 36 vacancies thus created by the expiration of the term of office of the gover-
 37 nor shall be forthwith submitted to the senate for the advice and consent of
 38 that body, and when so submitted shall be as expeditiously considered as pos-
 39 sible.

40 Upon receipt of an appointment along with the letter of appointment in
 41 the senate for the purpose of securing the advice and consent of the sen-
 42 ate, the appointment shall be referred by the presiding officer to the appro-
 43 priate committee of the senate for consideration and report prior to action
 44 thereon by the full senate.

45 (f) Excepting the appointments made pursuant to subsection (c) of this
 46 section, whenever an appointee's term has expired as prescribed by law,
 47 the governor or the authorized appointing authority must fill the position
 48 within twelve (12) months of the expiration of the term. However, an of-
 49 fice will be vacant if the governor or the authorized appointing authority:
 50 (i) fails to timely appoint a qualified person at the earlier of the time

1 required by law or required in this subsection; or (ii) fails to provide
 2 the senate with an appropriate letter or document of appointment by the
 3 thirty-sixth legislative day of the subsequent legislative session. All
 4 letters or documents of appointment must, as reasonably possible, accompany
 5 the additional documentation required by the senate. At the request of the
 6 secretary of the senate, the governor or the authorized appointing authority
 7 must provide the additional documentation.

8 (g) It is the intent of the legislature that the provisions of this sec-
 9 tion as amended by this chapter shall not apply to appointments which have
 10 been made prior to the effective date of this chapter. It is the further in-
 11 tent of the legislature that the provisions of this section shall apply to
 12 the offices listed in this section and to any office created by law or exec-
 13 utive order which succeeds to the powers, duties, responsibilities and au-
 14 thorities of any of the offices listed in subsections (c) and (d) of this sec-
 15 tion.

16 (h) When a gubernatorial appointment that is subject to the advice and
 17 consent of the senate pursuant to this section is expressly rejected by the
 18 senate, the rejected appointee shall be ineligible for reappointment by the
 19 governor to the same position for one (1) year following the senate's express
 20 rejection.

21 SECTION 2. That Section 67-802, Idaho Code, be, and the same is hereby
 22 amended to read as follows:

23 67-802. OFFICE OF GOVERNOR -- DUTIES OF GOVERNOR. (1) The office of the
 24 governor shall be composed of: the state liquor division, as provided by
 25 chapter 2, title 23, Idaho Code; the military division, as provided by ti-
 26 tle 46, Idaho Code; the division of financial management; and such other di-
 27 visions and units as are established or assigned by law, or created through
 28 administrative action of the governor.

29 (2) The governor shall appoint an administrator for each division, with
 30 the advice and consent of the senate. Administrators shall serve at the
 31 pleasure of the governor, and shall be exempt from the provisions of chapter
 32 53, title 67, Idaho Code. Other subordinate staff necessary to accomplish a
 33 division's mission shall be subject to the provisions of chapter 53, title
 34 67, Idaho Code.

35 (3) When making an appointment or filling a vacancy that is subject to
 36 the advice and consent of the senate, the governor shall make the appoint-
 37 ment or fill the vacancy within ninety (90) days of when the term of such ap-
 38 pointment ends or of when the position becomes vacant for any reason or by the
 39 start of the next legislative session, whichever is sooner.

40 (4) The supreme executive power of the state is vested by section 5,
 41 article IV, of the constitution of the state of Idaho, in the governor, who
 42 is expressly charged with the duty of seeing that the laws are faithfully
 43 executed. In order that he may exercise a portion of the authority so vested,
 44 the governor is authorized and empowered to implement and exercise those
 45 powers and perform those duties by issuing executive orders from time to time
 46 which shall have the force and effect of law when issued in accordance with
 47 this section and within the limits imposed by the constitution and laws of
 48 this state. Such executive orders, when issued, shall be serially numbered
 49 for each calendar year and may be referred to and cited by such numerical

1 designation and title. Each executive order issued hereunder shall be ef-
 2 fective only after signature by the governor, attestation by and filing with
 3 the secretary of state, who shall keep a permanent register and file of such
 4 orders in the same manner as applies to acts of the legislature. In addition,
 5 each executive order required by chapter 52, title 67, Idaho Code, to be pub-
 6 lished in the administrative bulletin shall be filed with the administrative
 7 rules coordinator and published in the bulletin. Each such executive order
 8 issued by the governor must prescribe a date after which it shall cease to
 9 be effective, which shall be within four (4) calendar years of the effective
 10 date of such order, and if no date after which such order shall cease to be
 11 effective is contained in the order, then such order shall cease to be ef-
 12 fective four (4) calendar years from the issuance thereof, unless renewed by
 13 subsequent executive order. The governor may modify or repeal any executive
 14 order by issuance of a new executive order. The procedures expressly set
 15 forth in this section shall be sufficient to make an executive order effec-
 16 tive.

17 (5) In addition to those powers prescribed ~~above~~ in this section, and
 18 those prescribed by the constitution, the governor has the powers, and may
 19 perform the duties prescribed in this section and ~~the following sections~~ as
 20 follows:

- 21 ~~1-~~ (a) To supervise the official conduct of all executive and ministe-
 22 rial officers.
- 23 ~~2-~~ (b) To see that all offices are filled, and the duties thereof per-
 24 formed, or, in default thereof, apply such remedy as the law allows; and
 25 if the remedy is imperfect, acquaint the legislature therewith at its
 26 next session.
- 27 ~~3-~~ (c) To make the appointments and supply the vacancies provided by
 28 law.
- 29 ~~4-~~ (d) He is the sole official organ of communication between the gov-
 30 ernment of this state and the government of any other state or terri-
 31 tory, or of the United States.
- 32 ~~5-~~ (e) Whenever any suit or legal proceeding is pending in this state,
 33 or which may affect the title of this state to any property, or which may
 34 result in any claim against the state, he may direct the attorney gen-
 35 eral to appear on behalf of the state.
- 36 ~~6-~~ (f) He may require the attorney general or prosecuting attorney of
 37 any county to inquire into the affairs or management of any corporation
 38 existing under the laws of this state.
- 39 ~~7-~~ (g) He may require the attorney general to aid any prosecuting at-
 40 torney in the discharge of his duties.
- 41 ~~8-~~ (h) He may offer rewards not exceeding one thousand dollars (\$1,000)
 42 each, payable out of the state treasury, for the apprehension of any
 43 convict who has escaped from the state prison, or of any person who has
 44 committed, or is charged with the commission of, an offense punishable
 45 with death; and also offer like rewards, not exceeding five hundred
 46 dollars (\$500) each, in cases of felony, where the offense is not pun-
 47 ishable with death.
- 48 ~~9-~~ (i) To perform such duties respecting fugitives from justice as are
 49 prescribed by the penal code.

1 ~~10.~~ (j) To issue and transmit election proclamations as prescribed by
2 law.

3 ~~11.~~ (k) He may require any officer to make special reports to him in
4 writing on demand.

5 ~~12.~~ (l) He has such other powers and may perform such other duties as
6 are devolved upon him by any law of this state.

7 SECTION 3. That Section 67-303, Idaho Code, be, and the same is hereby
8 amended to read as follows:

9 67-303. HOLDING OFFICE AFTER EXPIRATION OF TERM. Every Subject to the
10 provisions of section 67-802(3), Idaho Code, every officer elected or ap-
11 pointed for a fixed term shall hold office until his successor is elected
12 or appointed and qualified, unless the statute under which he is elected or
13 appointed expressly declares the contrary. This section shall not be con-
14 strued in any way to prevent the removal or suspension of such officer, dur-
15 ing or after his term, in cases provided by law.

16 SECTION 4. An emergency existing therefor, which emergency is hereby
17 declared to exist, this act shall be in full force and effect on and after
18 July 1, 2026.